

Lord Thurlow, indeed, is reported to have questioned the decision in *Westley v. Clarke* (*b*); but Lord Alvanley said, "he must enter his dissent against the rule, that executors joining in a receipt were both liable, for he did not hold that an executor could not *in any case* be discharged from a receipt given for conformity: he did not find fault, for instance, with the case of *Westley v. Clarke*" (*c*). And, again, he said, "he perfectly concurred in the decision of that case; and the joining in a receipt, though not perhaps absolutely necessary, he would not consider *conclusive*" (*d*). Lord Eldon, in evident allusion to the case of *Westley v. Clarke*, admitted that the old rule had been *pared down*, at the same time expressing his opinion that the notion upon which the later cases had proceeded, viz. that the old [*270] rule had a tendency *to discourage executors from acting, was very ill founded. A plain general rule, he thought, which once laid down was easily understood and might be generally known, was much more inviting to executors than a rule referring everything to the particular circumstances (*a*).

Present doctrine on the subject. — The later doctrine of the Court was thus enunciated by Lord Eldon: — "Though one executor has joined in a receipt, yet whether he is liable shall depend upon his *acting*. The former was a simple rule that *joining* should be considered as *acting*, but now *joining alone* does not impose responsibility" (*b*); and in another case he observed that the old rule had been "broken down, leaving every case to be determined by its own circumstances" (*c*). Lord Redesdale laid down the rule thus: "the distinction with respect to mere signing appears to be this; that if a receipt be given for the purpose of form, then the signing will not charge the person not receiving; but if it be given under circumstances purporting that the money, though not actually received by both executors, was under the control

(*b*) *Sadler v. Hobbs*, 2 B. C. C. 117. Ves. 198; *Brice v. Stokes*, 11 Ves.

(*c*) *Scurfield v. Howes*, 3 B. C. C. 325; *Walker v. Symonds*, 3 Sw. 64.

94. (*b*) *Walker v. Symonds*, 3 Sw. 64.

(*d*) *Hovey v. Blakeman*, 4 Ves. (*c*) *Shipbrook v. Hinchinbrook*, 16

608. Ves. 479.

(*a*) See *Chambers v. Minchin*, 7